

AYUSH IP GUIDELINES

COMPREHENSIVE LEGAL FRAMEWORK FOR TRADITIONAL KNOWLEDGE IP PROTECTION

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This document provides a consolidated reference for intellectual property protection, Access and Benefit Sharing (ABS) compliance, and regulatory classification of Ayurvedic formulations under Indian and international law.

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CHAPTER 1: PATENTABILITY OF AYURVEDIC FORMULATIONS

1.1 Polyherbal Ashwagandha IP Viability Assessment

Ashwagandha (*Withania somnifera*) is one of the most commercially significant herbs in the Ayurvedic pharmacopoeia. Its patentability under Indian law requires careful analysis of several statutory provisions.

Under the Patents Act, 1970, Section 3(p), an invention which in effect is traditional knowledge or which is an aggregation or duplication of known properties of traditionally known component or components is NOT patentable. This is the primary statutory bar against patenting traditional formulations.

However, a polyherbal formulation containing Ashwagandha CAN be patentable if the following conditions are met:

(a) The formulation demonstrates a novel synergistic effect not predictable from the individual ingredients. For example, Ashwagandha combined with Brahmi and Shankhapushpi producing an enhanced nootropic effect that is quantifiably superior to any individual ingredient may constitute an inventive step under Section 2(1)(ja).

(b) The formulation uses a novel extraction method, novel bioavailability enhancement technique (such as nano-encapsulation or phytosome technology), or novel delivery system not part of traditional knowledge.

(c) The applicant demonstrates through clinical or pre-clinical data that the formulation has enhanced efficacy compared to traditional preparations, satisfying Section 3(d) requirements.

1.2 IP Protection Strategy for Ashwagandha Products

Key Statutory References for Ashwagandha Patentability:

- Patents Act 1970, Section 3(d): Bars mere new forms of known substances unless enhanced efficacy is shown.
- Patents Act 1970, Section 3(p): Bars inventions that are traditional knowledge.
- Patents Act 1970, Section 2(1)(ja): Defines inventive step.
- Patents Act 1970, Section 2(1)(l): Defines novelty requirement.
- TKDL Database: Must be searched to ensure the formulation is not already documented as traditional knowledge.

Recommended IP Strategy for Ashwagandha Products:

- Patent Protection: Only for genuinely novel formulations with demonstrated enhanced efficacy (not traditional formulations).
- Trade Secret Protection: For proprietary extraction and standardization.
- Trademark Protection: For brand names associated with specific products.
- Geographical Indication: Nagori Ashwagandha from Rajasthan holds GI status.

Risk Assessment:

Filing a patent for a traditional Ashwagandha formulation carries HIGH RISK of rejection under Section 3(p). The TKDL database contains extensive records of Ashwagandha-based formulations from classical texts including Charaka Samhita, Bhavaprakasha, and Ashtanga Hridaya.

CHAPTER 2: ACCESS AND BENEFIT SHARING (ABS) FOR BIOLOGICAL RESOURCES

2.1 Cultivated Turmeric Export · ABS Compliance Check

Turmeric (*Curcuma longa*) is both a biological resource and a medicinal plant extensively used in Ayurveda. Any entity seeking to use or export turmeric-based products must comply with the Biological Diversity Act, 2002 and the Biological Diversity Rules, 2024.

FOR INDIAN ENTITIES USING CULTIVATED TURMERIC:

Under the 2024 Biological Diversity Rules, Section 7, Indian entities using CULTIVATED biological resources (including cultivated turmeric) are EXEMPT from requiring prior approval from the National Biodiversity Authority (NBA).

Requirements:

- File prior intimation with the State Biodiversity Board (SBB) at least 15 days before commencing commercial utilization.
- Use BMC Form 1 for this intimation.
- Ensure benefit-sharing payments through the ABS mechanism if using the resource for commercial purposes.
- Timeline: 15-day prior intimation period only.

FOR FOREIGN ENTITIES SEEKING TO USE INDIAN TURMERIC:

Foreign entities MUST obtain prior approval from the National Biodiversity Authority (NBA) under Section 3 of the Biological Diversity Act, 2002.

Requirements:

- Filing Form I (Application for access to biological resources) with NBA.
- Detailed research proposal and benefit-sharing agreement.
- NBA Section 3 approval is mandatory.
- Required Forms: Form I (NBA Application), Form III (Transfer Agreement).
- Timeline: 90-180 days for NBA approval.
- Non-compliance penalties: Up to 5 years imprisonment and Rs. 10 lakh fine under Section 55 of the Biological Diversity Act.

2.2 Wild vs. Cultivated Resource Distinction

The 2024 BD Rules make a critical distinction:

- CULTIVATED resources grown in agricultural settings are subject to simplified compliance (BMC intimation only).
- WILD resources collected from natural habitats require full NBA/SBB approval processes.
- The burden of proof for establishing "cultivated" status lies with the applicant.

2.3 Benefit Sharing Mechanisms

Under the BD Act 2002 and 2024 Rules:

- Benefit sharing is determined by the NBA based on Mutually Agreed Terms.
- For commercial utilization, monetary benefits are typically 1-5% of the purchase price or 0.1-0.5% of the annual gross ex-factory sale price.
- Non-monetary benefits may include technology transfer, joint ventures, and capacity building.
- All benefit-sharing arrangements must be deposited with the National Biodiversity Fund or Local Biodiversity Fund as applicable.

CHAPTER 3: SECTION 3(p) TRADITIONAL KNOWLEDGE BAR

3.1 Understanding Section 3(p) of the Patents Act, 1970

Section 3(p) was inserted by the Patents (Amendment) Act, 2005 and states:

"An invention which, in effect, is traditional knowledge or which is an aggregation or duplication of known properties of traditionally known component or components, is not an invention within the meaning of this Act."

This provision is India's primary statutory defense against biopiracy and misappropriation of traditional knowledge. It has been used to successfully challenge several international patent applications on traditional Indian medicines.

3.2 Key Case Studies Under Section 3(p)

Case 1 - Turmeric Patent (USPTO Patent No. 5,401,504):

The University of Mississippi Medical Center was granted a US patent for "Use of Turmeric in Wound Healing" in 1995. India's CSIR challenged this patent, demonstrating that turmeric's wound-healing properties were documented in ancient Ayurvedic texts. The USPTO revoked the patent in 1997.

Case 2 - Neem Patent (European Patent No. 0436257):

W.R. Grace Company and USDA were granted a European patent for controlling fungi using neem extract. India challenged this in 2000, citing traditional knowledge. The EPO revoked the patent in 2005 after a 10-year legal battle.

Case 3 - Basmati Rice Patent (USPTO Patent No. 5,663,484):

RiceTec Inc. obtained a US patent covering Basmati rice lines. India challenged multiple claims, and several were struck down.

3.3 TKDL as a Defensive Tool Against Section 3(p) Violations

The Traditional Knowledge Digital Library (TKDL) was created specifically to prevent biopiracy by documenting traditional Indian knowledge in a patent-examiner accessible format. As of 2024:

- TKDL contains over 4.5 lakh formulations from Ayurveda, Unani, Siddha, and Yoga texts.
- It has been instrumental in challenging over 200 patent applications globally.
- TKDL access agreements exist with patent offices in the US, EU, UK, Japan, Australia, and others.
- TKDL documentation serves as prior art evidence under Section 3(p).

3.4 Practical Implications for Patent Applicants

If you are filing a patent for an Ayurvedic or traditional medicine:

1. Conduct a TKDL search before filing to ensure your formulation is not already documented.
2. Clearly demonstrate what aspect of your invention goes BEYOND traditional knowledge.
3. Provide data showing enhanced efficacy, novel mechanism, or genuinely novel composition.
4. Be prepared for Section 3(p) objections during patent examination.
5. Document all experimental evidence of novelty and inventive step.

CHAPTER 4: CLASSIFICATION OF AYURVEDIC FORMULATIONS

4.1 Classical vs. Proprietary Ayurvedic Medicines

Classical Ayurvedic Medicine:

- Formulations documented in authoritative texts listed in the First Schedule of the Drugs and Cosmetics Act (e.g., Charaka Samhita, Sushruta Samhita, Bhavaprakasha, Sharangadhara Samhita).
- Do NOT require individual product licensing; manufactured under a general manufacturing license.
- Must follow exact composition, method of preparation, and dosage as described in the classical text.

Proprietary Ayurvedic Medicine:

- Novel formulations not found in classical texts.
- Require specific product approval and licensing under the Drugs and Cosmetics Act.
- Must undergo safety and efficacy testing as prescribed by AYUSH Ministry guidelines.

4.2 Ayurveda Aahar Classification (FSSAI 2022)

Under the Food Safety and Standards (Ayurveda Aahara) Regulations, 2022:

- Products intended for dietary/food use that incorporate Ayurvedic ingredients are classified as "Ayurveda Aahar."
- Regulated by FSSAI, NOT by AYUSH/CDSCO drug regulators.
- Products must contain only ingredients from the approved list.
- Labels must include "This is not a medicinal product."
- FSSAI licensing and registration requirements apply.

CHAPTER 5: INTERNATIONAL IP TREATIES RELEVANT TO AYURVEDA

5.1 WIPO Treaty on IP, Genetic Resources and Associated TK (GRATK, 2024)

The WIPO Diplomatic Conference in May 2024 adopted the GRATK Treaty:

- Requires patent applicants to disclose the country of origin of genetic resources used in inventions.
- Requires disclosure of traditional knowledge associated with genetic resources.
- Strengthens India's position in defending against biopiracy.
- Expected to come into force after ratification by 15 member states.

5.2 Nagoya Protocol on ABS

The Nagoya Protocol (effective October 2014) establishes:

- Prior Informed Consent (PIC) requirement for access to genetic resources.
- Mutually Agreed Terms (MAT) for benefit-sharing.
- Compliance measures that member states must implement.
- India ratified the Nagoya Protocol and implemented it through the BD Act 2002 and BD Rules.

5.3 TRIPS Agreement and Traditional Knowledge

Article 27.3(b) of TRIPS allows member states to exclude plants, animals, and biological processes from patentability. India uses this flexibility:

- Section 3(j): Excludes plants and animals from patentability.
- Section 3(p): Excludes traditional knowledge from patentability.
- Section 3(d): Prevents evergreening of patents on known substances.